

have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Parties are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

14. 9:00 AM CASE NUMBER: L26-01450
CASE NAME: BANK OF AMERICA N.A. VS. AMY NILSON
***HEARING ON MOTION IN RE: TO DISMISS COMPLAINT**
FILED BY: NILSON, AMY

TENTATIVE RULING:

Defendant filed a Demurrer to the Complaint, on 6/2/26, arguing, under Section 430.10(e) of the CCP, that the Complaint fails to state a cause of action because the debt at issue has been "charged off" by the Plaintiff.

The Demurrer is unopposed and there is proof of mail service of the Demurrer to Plaintiff.

The proof of service of summons in this case, filed on 3/19/26, reflects substitute service on 3/18/26.

Background

Defendant provides evidence of credit reports reflecting that Plaintiff purportedly "charged off" the debt at issue in this matter.

The Defendant argues that this shows the debt no longer exists and, as a result, there is no longer a claim against her.

Analysis

First, the deadline for a defendant to file a demurrer is 30 days from the receipt of the summons. (CCP 430.40). Defendant is well past that deadline with her demurrer.

Second, even assuming, arguendo, that her demurrer is timely, Defendant provides no authority for her claim. That her debt may have been "charged off" does not imply the debt no longer exists. She provides no evidence to support this other than a purported from the website of a credit reporting company and her own conjecture.

Disposition

Defendant's Demurrer is overruled.

Court to file the Order.

15. 9:00 AM CASE NUMBER: N26-1199
CASE NAME: TODD TEMPLETON VS. CALIFORNIA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF MANDATE

FILED BY: TEMPLETON, TODD NICHOLAS

TENTATIVE RULING:

Petitioner has filed a Petition for Writ of Mandate, requesting this court to either direct Respondent to set aside a DMV order suspending Petitioner's driving license, or issue an order to show as to why the court should not take such action.

There is no evidence that Petitioner has provided notice of their Motion or the hearing to Respondent.

Background

The Petition challenges the results of a DMV administrative hearing, held on 4/24/26, in which a DMV employee, E. Nguyen ("Employee Nguyen"), considered evidence and issued a decision revoking Petitioner's driving license. The hearing centered on an incident in which Petitioner was alleged to have driven a car while under the influence of alcohol.

The Petitioner brings this Writ under CCP Section 1094.5, arguing that Employee Nguyen abused their discretion in rendering their decision, apparently because Respondent did not call any witnesses at the hearing, and instead, apparently, relied on documentary evidence.

Petitioner cites no authority as to why Employee Nguyen's use of such evidence constitutes an abuse of discretion, and makes no additional arguments concerning the manner in which Employee Nguyen abused their authority.

The Report of Employee Nguyen ("Report"), suggests that Employee Nguyen relied on the Arrest Report, DS-367, the Officer's Statement date 12/27/25, as well as, apparently, MVAR/BWC footage, in finding that: (1) There was Probable Cause that Petitioner was driving a vehicle; (2) Petitioner had objective symptoms of intoxication; (3) There was Reasonable Cause to believe that Petitioner was under the influence of alcohol while driving; (4) The officer Lawfully Arrested Petitioner; and, (5) That Petitioner was properly admonished about the chemical test and refused to take it upon request.

Petitioner attached the following exhibits to his Petition, in addition to the Report: Officers Statement (DS 367) and Police Report.

Petitioner made no mention of whether or not Employee Nguyen excluded any evidence from the hearing.

Analysis

Section 1094.5 of the CCP governs a trial court's review of the validity of an administrative decision. When a petitioner claims that the administrative arbiter abused their discretion in rendering their decision, subdivision (b) provides that such abuse is established "[i]f the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (CCP 1094.5(b).)

Subdivision (c) goes on to provide that, where the claim is that the decision was not supported by the evidence, the reviewing court resolves the question of whether the findings were either not

supported by the weight of the evidence, or by substantial evidence in light of the whole record, depending on whether or not review is de novo.

In the instant matter, the court finds that, though there is no notice to Respondent of this Petition, this court, given its ultimate ruling, finds no prejudice in addressing the Petition on its merits.

Turning the facts at issue, namely, the exhibits attached to the Petition, the statement and police report show that on 12/27/25, the officer found Petitioner trapped in an overturned vehicle. Petitioner was the sole occupant, possessed a strong odor of alcohol, had bloodshot and water eyes, and the officer observed four open containers of alcohol inside the vehicle (of high alcoholic content per volume).

Officer provided the chemical test admonition to the Petitioner, and the Petitioner remained silent.

The officer obtained blood draw warrant, and a phlebotomist withdrew blood samples.

Assuming that this court is employing an independent review in deciding whether or not there was an abuse of discretion, this court first finds that the findings are supported by the weight of the evidence. This evidence, as provided in the exhibits by the Petitioner, clearly shows that the Petitioner had objective symptoms of driving under the influence of alcohol, and that he refused to submit to a chemical test.

Next, in addressing the purported claim that Respondent conducted the hearing, or admitted evidence, improperly, because they did not call any witnesses at the hearing, this court is not aware of any authority prohibiting such action. The Petitioner certainly cites to no authority to support this argument.

Thus, this court finds that Respondent did not abuse their discretion in rendering their decision.

Disposition

Petition is denied.

Petitioner to file Order and serve copy of Order on Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: RS26-0279
CASE NAME: AGAPE ASSETS LLC VS WEST COAST AUTOMETRICS INC.
JURY TRIAL
FILED BY: AGAPE ASSETS LLC
TENTATIVE RULING: